

Plan File Indexing Specification Guide



Document Version 1.4

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Revision History

Version	Date	Description
1.0	08/30/2011	Initial version for August 2011 publication.
1.1	11/29/2011	Appendix A: - Added: BDL Review Checklist, Earnings Offsets Provisions Summary - Updated: Changed title of <i>Plan Analysis for Pre-Benefit Estimation and Benefit Administration Memo</i> to <i>Estimated Benefits Administration Analysis Memo</i>. Appendix B: Updated to match correction of 20A2 index name in IPS.
1.2	08/30/2012	Appendix A: Updated <i>Plan Summary</i> to indicate previously known as <i>Plan Abstract</i> .
1.3	11/26/2013	Indices: Added: - Index 11A5 PDR Administrative Subpoena and Supporting Documents - Index 11D8 PAE Administrative Subpoena and Supporting Documents

1.4	09/24/2018	• Reclassified <i>Database Construction Report</i> and <i>Participant Review Summary</i> under 11A from 11A1. • Added <i>Trip Planning Memo</i> and <i>Post-Trip Memo</i> under 11A. • Reclassified <i>Small Plan Database Construction and Analysis Report</i> and supporting documents under 11A from 11G. • Removed appendices for obsolescence. • Organizational updates (OBA for BAPD, etc.).
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Contents

Revision History	ii
Introduction	9
References	9
Indices	10
INDEX 1: Reportable Event Documents (Pre-DOPT/Trusteeship)	10
INDEX 2: Distress Termination Documents (Pre-DOPT/Trusteeship)	10
INDEX 3: Trusteeship Documents (PBGC)	10
3A. Notice of Determination	10
3B. Trusteeship Agreement	10
3C. Trusteeship Working Group Documentation	11
INDEX 4: Non-Trusteed Plan Information (Pre-DOPT/Trusteeship)	11
4A. Notice of Sufficiency and Related Documents	11
4B. Multi-Plan Closeout Information and Documents	11
4C. Multi-Distribution Certification and Attachments	11
4D. Multi-PBGC/CPA Review/Audit Reports	11
INDEX 5: Pension Plan Documents	12
5A. Plan Amendments and Restatements	12
5B. Original Plan Documents	12
5C. Union Contracts (and Amendments)	12
5D. Multi-Union Financial Report (DOL Form LM 2, 3, ETC)	13
INDEX 6: Insurance Contracts	13
INDEX 7: Trust Agreements (Plan)	14
7A. Plan Trustee Agreement	14
7B. Related Correspondence	14
7C. Multi-Plan Trustee Agreements	14
7D. Multi-Plan Administrator/Bank Trustee Agreements	14
INDEX 8: Additional Plan and Participant Data/Multi-Employer Plan Data	14
8A. PBGC Internal Gross Level Participant Data and Non-ASD Spreadsheets (Post-DOPT/Trusteeship)	15
8B. Prior Plan Administrator Data (Pre-DOPT/Trusteeship)	15
8C. Employee Contributions	15
8D. Plan Assumption (Including DERF-Participant Loads)	15
8E. Multi-Participant Data	15

8F. Multi-Plan Administrator Data	16
8G. Multi-Legal Documentation (Non-Correspondence)	16
INDEX 9: Correspondence (PBGC Memoranda and Plan-Level Correspondence).....	16
9A. Legal (Correspondence and Documentation)	16
9B. Financial (Notice to SSC, notice from legal to plan to obtain funds from plan etc)	16
9C. Actuarial.....	16
9D. ValPatch	17
9E. Participant Services	17
9F. Appeals Board	17
9G. Miscellaneous Correspondence and Telephone Logs (Chronological)	17
9H. Congressional.....	17
9I. Multi-Plan Trustee/Administrator.....	17
9J. Multi-Legal Letters/Documents	17
9K. Multi-Participant Related Queries.....	18
9L. Multi-Miscellaneous Phone Logs, Letters and E-mails	18
9M. Trusteeship Agreement Correspondence	18
INDEX 10: Pre-DOPT and Multiemployer Actuarial Data	18
INDEX 11: Audit Documents (Post-DOPT/Trusteeship) and Multi-Employer Plans.....	19
11A. Participant Data Audits	19
11B. Plan Document Audit.....	20
11C. Source Document Audit	20
11D. Plan Asset Audit	20
11E. Net Worth of Single and Multiemployer Plans	21
11F. Controlled Group and Supporting Documentation and Multiemployer Plans	22
11G. Participant Data Validation (PDV)	23
11H. Plan Closing Audit Report (includes checklist).....	23
11I. ADT Audit Completed/IPV Missing Date Report.....	23
INDEX 12: Actuarial Case (Closeout) Reports (Post-DOPT/Trusteeship)	23
12A. Actuarial Case Report Checklist.....	24
12B. Actuarial Case Memo (Includes PA Guidance)	24
12C. ARIEL Valuation Memo and Calculation Details	24
12D. Plan Abstract/Plan Summary/APAD	24
12E. Plan Conversion Factor	24
12F. Valuation Spreadsheets/Listings	25
12G. Quality Control Review.....	25
12H. Benefit Statement Recalculation Program Instructions.....	25
12I. Samples of ARIEL Benefit and Retirement Statements	25

12J. Samples of Detailed Calculations	25
12K. Contractor's Actuarial Certification	25
12L. Unassigned	26
12M. Actuarial Task Orders	26
12N. Purchased Annuity Listings	26
12O. Lump Sums Paid Prior to DOPT	26
12P. Miscellaneous	26
12Q. 4022(c) Revisions	26
12R. Cash Balance Plan Annual Updates	26
12S. CAS Asset Screen (historical reference only)	27
INDEX13: SID Documents (Post-DOPT/Trusteeship)	27
13A. Correspondence	27
13B. Participant Data Audit	27
13C. Technical Review	27
13D. RETTIG Actuarial (Closeout) Report	27
INDEX14: Standard Termination	27
14A. STCD Forms and Schedules	27
14B. STCD Correspondence	28
14C. Distribution Data	28
INDEX15: Coverage/Classification Cases	28
15A. Correspondence Requesting Coverage/Classification	28
15B. Phone Log(s)	28
15C. Determination Letters	28
INDEX16: Multiemployer Cases	29
16A. Event Filing Documents and Related Correspondence	29
16B. Official Incoming/Outgoing Correspondence, E-mails and Phone Logs	29
16C. ASD Valuations and Analyses	29
16D. IRS Determination Letters	29
16E. DOL/IRS Documents	30
16F. Federal Register Notices	30
16G. Withdrawal Liability Documents	30
16H. Contributing Employer(s) Information	30
16I. Case Closing Documents	30
16J. Financial Assistance Cases	31
16K. MEPD SOP Checklists	32
INDEX17: Reconsiderations	32
17A. Request for Reconsideration	33

17B. Documentation.....	33
17C. Determination	33
INDEX20: Missing Participant Program	33
20A. Post-Distribution Certification (PDC)	33
20B. Schedule MP	33
20C. Attachment A	33
20D. MP Correspondence (Plan-Level).....	33

Introduction

This document provides a brief description of what document or type of document is imaged to each category in the Image Processing System (IPS) plan files. Two useful links appear throughout this document:

- [Technical Procedure 16 Plan and Participant File Maintenance](#)
- [Plan Document Type Index Barcode Sheets](#)

References

Table 1 lists the references used to update this document.

Table 1: References

Document	Source Organization
<i>Plan File Indexing Specifications Manual</i> , version 1.5. This document was formerly accessed through the <i>BAPD Operations Manual</i> under the Plan File Document Indexing Specifications link that directed the user to a portal page. Instructional content in this document was transferred and updated to the <i>BAPD Operations Manual</i> , Technical Procedure 16 Plan and Participant File Maintenance on 08/30/2011.	Retiree Services Division/BAPD

Indices

INDEX 1: Reportable Event Documents (Pre-DOPT/Trusteeship)

Section 4043 of the Employee Retirement Income Security Act (ERISA) requires that plan administrators and contributing sponsors notify the Pension Benefit Guaranty Corporation (PBGC) in writing of the occurrence of certain events, such as active participant reduction, distribution to a substantial owner, change in contributing sponsor or control group, and bankruptcy. These events may pose a risk to the pension plan and to PBGC. The reportable event notices are formal notices from the sponsor, or plan administrator, or could be PBGC Form 10 or Form 10-Advance. All reportable events documents are pre-date of plan termination (DOPT)/trusteeship. This section should not include bankruptcy documents.

Reportable events include but are not limited to:

- Written notice from the plan administrator.
- PBGC Form 10 or Form 10-Advance.
- Memos from the Office of General Counsel (OGC) requesting a case be opened.
- Memos from the Processing and Technical Assistance Branch (PTAB) based on a participant inquiry.

INDEX 2: Distress Termination Documents (Pre-DOPT/Trusteeship)

Distress Termination Documents include the *Notice of Intent to Terminate* (NOIT), Internal Revenue Service (IRS) form 5310, Schedule EA-D, and/or PBGC forms 600 and 601, including enclosures and any related correspondence. It is the company's way of stating their pension plan is failing and asking if PBGC wants to take over the plan. (In older plans, you may find a list of 24-26 questions PBGC asked to determine if it wanted to take the pension plan. The answers to the questions are not found on any prescribed form, but are probably in letter form on the company's letterhead.) Distress Termination Documents also include correspondence and notices from prior plan administrators to participants, union officials, and other interested parties notifying them of the intent to terminate the pension plan.

INDEX 3: Trusteeship Documents (PBGC)

3A. Notice of Determination

The *Notice of Determination* (NOD) is a standard PBGC form stating, "Please take notice PBGC is becoming Trustee of this pension plan." Other related documents (that is, *Letter of Determination*) may be placed in section 3A.

3B. Trusteeship Agreement

These legal documents state PBGC is the trustee of a pension plan. The *Trusteeship Agreement* could be an agreement between a corporation and PBGC that the pension plan has been terminated and trusted to PBGC, or it may be a court ordered appointment of PBGC as trustee. In this later case, it would be a directed event so the term "agreement" may not be strictly accurate. In the former case, it may be thought

of as a handshake between the corporation and PBGC concerning PBGC becoming the trustee of the pension plan.

3C. Trusteeship Working Group Documentation

These documents are all minutes, recommendations, or other correspondence that discuss PBGC taking over the pension plan (for example, *Trusteeship Working Group (TWG) Memos*, *Termination Decision Records* (TDRs), and *Final Transmittal Sheet*). This includes documents predating the creation of the formal TWG. Think of these as informal meetings to discuss the idea and details of PBGC taking over as trustee of the pension plan.

INDEX 4: Non-Trusteed Plan Information (Pre-DOPT/Trusteeship)

Documents of this type may be found in a trusteed plan if the company became insolvent after an initial non-trustee finding or the company ceased operations before distributing the plan assets.

Multiemployer plans are never trusteed by PBGC, but the plan's trustee(s) can close out. The plan's trustee(s) is asked to submit Close Out documentation. PBGC may request audits by either PBGC or certified public accountant (CPA) firms. Include these audit reports in section 4.

4A. Notice of Sufficiency and Related Documents

These documents state that a corporation is either sufficiently funded to continue a pension plan or that it has acceptable solutions on how to be funded well enough to continue the pension plan. PBGC does not become trustee of the pension plan, as the plan remains with the corporation. An example would be a *CPD Abstract for Non-Trusteed plans*.

4B. Multi-Plan Closeout Information and Documents

The trustees of the plan have decided to close out the plan by paying each eligible participant their full benefit entitlement. They can notify PBGC of the close out of the Plan via various types of documents, including letters, copies of Trustees Resolutions, Minutes of Trustees Meetings, Plan Amendments, and documents from outside sources, such as insurance companies, actuaries, etc.

4C. Multi-Distribution Certification and Attachments

These are official documents, including supporting schedules and other documents, signed by actuaries or other appropriate officials, certifying a multiemployer plan is closed out. A schedule of payments to participants may also be included.

4D. Multi-PBGC/CPA Review/Audit Reports

These documents are Review Reports and/or Audit Reports of a multiemployer plan, including financial assistance cases, prepared by an independent CPA for PBGC or organizations within PBGC, such as the Contracts and Controls Review Department (CCRD) and Multiemployer Program Division (MEPD). It *does not include* 120-Day Audits prepared by the Compliance and Audits Branch (CAB)/Standard Termination Compliance Department (STCD) for new financial assistance cases *or* later audits or reviews conducted by CAB/STCD auditors. File these types of audits in section 16J6, CAB/STCD Financial Assist. Audit/Review Reports.

INDEX 5: Pension Plan Documents

All items in this section will be broken down by Table of Contents and indexed by major section/chapter as separate documents; DMC will accomplish this sort.

This section includes multiemployer pension plan documents, union contracts, and U.S. Department of Labor (DOL) union financial reports (DOL Forms LM-2, LM-3, etc.)

5A. Plan Amendments and Restatements

These are official documents that change or redefine the original pension plan. There may be more than one of these documents. This subsection includes employee handouts that give pertinent data about the plan, but in less detail than in the plan document. This type of document is considered a plan restatement even though it does not necessarily deal with modified plans. Organize documents within this subcategory in chronological order with the most recent amendment or restatement on top.

See [Technical Procedure 16 Plan and Participant File Maintenance](#) for more specific information about how the documents will be further indexed within this subcategory. Also, include plan-related Board of Director Minutes and plan summary descriptions.

5A1. Summary Plan Description (SPD)

A plain-English summary of a plan document required by Title I of ERISA and usually filed with the U.S. DOL.

5B. Original Plan Documents

These are the actual, original plan documents. If several pension plan documents are present, check to see if newer plans are new “original” plans or are simply restatements of the original plan. Remember that the company name may change. In all cases, the beginning and ending dates of two consecutive plans coincide and the personnel covered under the earlier dated plan are still covered under the newer plan. If in the plan file, there are no “original plan documents,” look for a union contract or insurance contract that legally stands in lieu of the pension plan. In this case, you must place a **CROSS REFERENCE** sheet in section 5B (using a 5B barcode sheet). Mark the cross reference to advise the reader to see the appropriate section for pension plan data. (In rare instances, the only pension plan data is found in the prior plan administrator’s trust agreement. **CROSS REFERENCE** to section 7A, Plan Trusteeship Agreement, in this case.) See [Technical Procedure 16 Plan and Participant File Maintenance](#) for more information.

5C. Union Contracts (and Amendments)

This is the actual union contract that states *all* policies the union and the corporation have agreed upon. This section contains much more information than just pension plan data. Scan the following pages of the union contract:

- Cover page
- Table of Contents
- Preamble

- Pages dealing with pensions
- Signature page

Place the remainder of the document behind the “Working Papers” separator sheet. If there are any amendments to the contract, place them on top of the contract with the newest amendment on top. If the union contract is the only place in the plan where pension benefits are delineated, you must place a **CROSS REFERENCE** sheet in Section 5B, Original Plan Documents, behind a 5B barcode sheet. Mark the cross reference to advise the reader to see Section 5C, Union Contracts (and Amendments), for pension plan data.

5C1. Union Contracts (Correspondence)

Include correspondence between a union and an employer or a plan sponsor and multiemployer plan trustees, relating to a union contract (Collective Bargaining Agreement (CBA)) in this section. A CBA may include benefit formulas used to calculate benefits.

5D. Multi-Union Financial Report (DOL Form LM 2, 3, ETC)

These forms are filed by labor unions with the U.S. DOL on a yearly basis. The forms disclose if union members are covered by a pension plan, if the union has merged or ceased to exist, as well as the names and phone numbers of the union’s officers and employees.

INDEX 6: Insurance Contracts

Include the actual insurance contracts documents, not correspondence regarding the contracts. An example would be a Group Annuity Contract, Amendments to the contract, and historical pages that were amended. Treat the group annuity contract, its amendments, and all supporting attachments as one document. If you have more than one contract, organize them in chronological order with the most recent contract on top. If you have amendments, place them on top of the contract, with the most recent amendment on top. These contracts are frequently entered into between the employer and the insurance company. In some older plan files, there is no document in section 5B, Original Plan Documents, of the file and the insurance contract stands in lieu of the pension plan. If this is the case, place a **CROSS REFERENCE** sheet in Section 5B, Original Plan Documents, behind a 5B barcode sheet. Mark the **CROSS REFERENCE** advises the reader to see section 6, Insurance Contracts for pension plan data.

Multiemployer Plans

Note: IPS does not contain a specific section for multiemployer insurance contracts. This information is reference only for imaging multiemployer insurance contract documents.

For a multiemployer insurance contract, the contract holder is the plan sponsor. For a single-employer plan, the sponsor is the employer. For multiemployer plans, there is no one employer who is the plan sponsor. For multiemployer plans, the plan sponsor is the Board of Trustees of the Plan; therefore, the contract holder is the Board of Trustees of the Plan. Examples of multiemployer insurance contract documents would be a Group Annuity Contract, amendments to the contract, and historical pages that were amended. Treat the original group annuity contact as one document. Consider subsequent amendments and supporting attachments to be part of the contract. If you have more than one contract and/or amendments, etc., organize them in chronological order, with the most recent contract on top. Include any documents that indicate the contract has been terminated, including any documents that explain what has happened to the assets attributable to the contract.

INDEX 7: Trust Agreements (Plan)

7A. Plan Trustee Agreement

These are legal documents that state who is the trustee of the plan (usually a corporate officer). These documents differ from section 3B, Trusteeship Agreement, documents in that these documents concern the prior plan administrator's (pre-DOPT and Multiemployer/Trusteeship) trusteeship of the pension plan, not PBGC. In rare cases, the pension plan may be found in these documents. If this is the only place in the file where the pension plan is located, place a **CROSS REFERENCE** sheet in Section 5B, Original Plan Documents, behind a 5B barcode sheet, advising the reader to see section 7A, Trust Agreements (Plan), for pension plan data.

7B. Related Correspondence

Any correspondence regarding the former (pre-DOPT/Trusteeship) trustee of the pension plan.

7C. Multi-Plan Trustee Agreements

These are legal documents appointing the plan's trustees. As the plan is usually jointly administered, it should have two or more trustees, appointed by both the employers, who contribute to the plan, and the union, which represents the participants in the plan. The trustees of the plan are similar to plan sponsor(s) of a single-employer plan. As trustees change from time to time, the most recent trustee agreement should be on top.

7D. Multi-Plan Administrator/Bank Trustee Agreements

These are legal documents appointing the plan's administrator and/or bank trustee. The plan administrator conducts the day-to-day operations of the plan for the trustees. The bank is considered a third-party trustee. As these types of trustees change from time to time, place the most recent trustee agreement on top.

INDEX 8: Additional Plan and Participant Data/Multi-Employer Plan Data

This section is used to index documents that otherwise cannot be placed with assurance. It is best not to assume that a document was used for a specific purpose if there is no data on or within that document that would verify your assumption. It was intended by the designers of the indexing system that this section be used whenever there is a question about the proper indexing location, which cannot otherwise be resolved.

If it is unclear as to whether a document properly belongs in Index 8A, PBGC Internal Gross Level Participant Data and Non-ASD Spreadsheets (Post-DOPT/Trusteeship), or 8B, Prior Plan Administrator Data (Pre-DOPT/Trusteeship), the default choice is 8A.

Include multiemployer plan and participant data under Index 8. This data includes:

- Participant data
- Plan administrator data
- Legal documentation (non-correspondence)

8A. PBGC Internal Gross Level Participant Data and Non-ASD Spreadsheets (Post-DOPT/Trusteeship)

Any data concerning the plan or a group of participants within the plan (for example, plan-level documents, memo to the file, and case officer to plan administrator). The data may be used internally by PBGC to value the plan and its liability. (Compare with section 11A, Participant Data Audit.)

8B. Prior Plan Administrator Data (Pre-DOPT/Trusteeship)

The prior plan data may be gross participant data and/or plan data and may be from the corporation and/or the corporate actuary. This data is used to determine the prior plan administrator's actuarial valuation report (AVR), but is not the AVR itself. Index the prior plan administrator's AVR in Section 10A, Prior Actuarial Valuation Reports.

8C. Employee Contributions

Monetary contributions made by employees, either voluntary or mandatory, to a pension plan.

8D. Plan Assumption (Including DERF-Participant Loads)

8D1. DERF-Date Entry Request Form

8D2. Check Register

Payment records provided by the paying agent, which includes the amount of the annuity payment, taxes, and other deduction.

8D3. Plan Assumption Report

Reconciliation with the prior paying agent's payment records and payments assumed by PBGC.

8D4. Plan Assumption Checklist

Checklist with concurrence from Employee Benefits Law Specialist (EBLS) CSD management as a consensus that all plan assumption tasks have been completed.

Note: The *OBA Operations Manual* may state not to image a specific document, but if the document is included in an imaging package for the DMC to image, image the document.

8D5. Payee Data Memo Form

The purpose is to insure that the correct form of benefit, actual retirement date, date of birth, and role of each payee at plan assumption is recorded in Spectrum, and that future benefit adjustments are recorded in Spectrum. This is done within 60 days of the date of PBGC'S first payment.

8E. Multi-Participant Data

These documents include lists of plan participants, individual valuations for participants, and other related documents, which are participant specific, including supporting documentation such as cutback worksheets.

8F. Multi-Plan Administrator Data

These documents include any types of documents received from the plan administrator that cannot be filed elsewhere in another section of the case file.

8G. Multi-Legal Documentation (Non-Correspondence)

These documents include legal documents related to specific participants, legal actions involving the plan, legal documents submitted for informational purposes, not necessarily related to the plan or a participant (that is, relates to the union associated with the plan). These must be the legal documents themselves. Correspondence regarding the legal action or court filings is indexed in sections 9J, Multi-Legal Letters/Documents, and 9K, Multi-Participant Related Queries, as applicable.

INDEX 9: Correspondence (PBGC Memoranda and Plan-Level Correspondence)

Place items in this correspondence section only if you are not able to index them to:

- Section 1, Reportable Event Documents (Pre-DOPT/Trusteeship).
- Section 2, Distress Termination Documents (Pre-DOPT/Trusteeship).
- Section 3C, Trusteeship Working Group Documentation.
- Section 7B, Related Correspondence.
- Or another more specific section.

Correspondence that forwards an otherwise indexable document is separated from that document. The letter is indexed in the appropriate subsection of Index 9, Correspondence, and the document it references is indexed to its appropriate location. An exception to this is data that cannot otherwise be identified without its cover letter. In this case, place the letter and its attachment in the appropriate index.

9A. Legal (Correspondence and Documentation)

All legal correspondence *excluding* court-ordered trusteeship agreements (section 3B, Trusteeship Agreement) and bankruptcy documentation (section 11E.3, Bankruptcy Information). This may include court actions, findings, judgments, and lawsuits.

9B. Financial (Notice to SSC, notice from legal to plan to obtain funds from plan etc)

This correspondence includes, but is not limited to, communications between State Street Corporation (SSC), PBGC, and a corporation. For example, notice to SSC from PBGC to take over pension payments or notice from PBGC's legal department to the pension plan to obtain funded plan money.

9C. Actuarial

This includes both internal and external correspondence.

9D. ValPatch

Documents indicating management's concurrence to proceed with a ValPatch mailing, specifically the *ValPatch Mailing Concurrence Memo*. In addition, other supporting documents include:

- Letter Template
- Sample Letters

Note: The *OBA Operations Manual* may state not to image a specific document, but if the document is included in an imaging package for the DMC to image, image the document.

9E. Participant Services

This includes correspondence between Plan Closing and the file room, such as letters to participants that are placed in the file as samples or *Authorization to Pay Benefits Prior to PBGC Trusteeship Memo*. This section does *not* include correspondence with participants.

9F. Appeals Board

Data concerning any decisions or cases about the plan as a whole, not concerning only a single participant.

9F1. Appeals Employer Correspondence

Correspondence (for example, mail, fax, e-mails) from an employer or representative concerning employer liability issues.

9G. Miscellaneous Correspondence and Telephone Logs (Chronological)

This includes correspondence that cannot be better categorized elsewhere in the Correspondence section. See the [Plan Document Type Index Barcode Sheets](#) Web page for examples.

9H. Congressional

To or from a member of Congress, or the President, or in reference to a letter from a member of Congress. The document must be in reference to the plan as a whole and not just an individual participant.

9I. Multi-Plan Trustee/Administrator

These documents include incoming and outgoing letters, e-mails, and phone logs to or from the plan trustee(s) or the plan administrator.

9J. Multi-Legal Letters/Documents

These documents include all legal documents relating to the plan, not filed elsewhere in the case file, which includes to and from plan attorneys, PBGC attorneys, and other attorneys representing individuals or organizations concerning the plan. Do not include legal documents or letters related to participants in the plan, which should be indexed in sections 8G, Multi-Legal Documentation (Non-Correspondence) or 9L, Multi-Miscellaneous Phone Logs, Letters and E-mails.

9K. Multi-Participant Related Queries

These documents include Correspondence, both incoming and outgoing, e-mails, and/or phone logs that are participant specific.

9L. Multi-Miscellaneous Phone Logs, Letters and E-mails

These documents include any miscellaneous phone logs, letters, and e-mails that do not readily belong elsewhere in the indexing system, such as a letter from the press requesting plan information.

9M. Trusteeship Agreement Correspondence

For correspondence that includes an attachment/enclosure of the *Trusteeship Agreement*, such as:

- Transmittal to internal PBGC parties regarding the trusteeship (*Trusteeship Transmittal Memo*).
- The letter to interested parties letting them know of the trusteeship. This can include plan administrator, paying agent, and unions (*4042(d) Notification of Trusteeship Letter to Interested Parties*).
- Letter submitted to plan administrator (*Executed Trusteeship Agreement Cover Letter*).

INDEX 10: Pre-DOPT and Multiemployer Actuarial Data

For multiemployer plans, the actuarial data can be an actuarial valuation, a Form 5500, or a service lists from the plan or an actuary representing the plan.

10A. Prior Actuarial Valuation Reports

Similar to section 12, Actuarial Case (Closeout) Reports (Post-DOPT/Trusteeship) and may contain plan conversion factors, valuation spreadsheets, and asset reports

Note: The *OBA Operations Manual* may state not to image a specific document, but if the document is included in an imaging package for the DMC to image, image the document.

10B. IRS Documents (Including Form 5500)

This section does *not* include correspondence or any documents that can be indexed in Section 2, Distress Termination Documents (Pre-DOPT/Trusteeship). See the [Plan Document Type Index Barcode Sheets](#) Web page.

10C. Multi- Actuarial Valuation Reports

These documents include Actuarial Valuation Reports and related memos received from the plan, the plan's actuary, and all other non-PBGC sources.

10D. Multi- Forms 5500 (EFAST and FreeERISA)

These documents include Form 5500s received directly from the plan, from the FreeERISA online service, DOL, via EFAST, and any other sources.

INDEX 11: Audit Documents (Post-DOPT/Trusteeship) and Multi-Employer Plans

Audit documents are completed prior to the Actuarial Case Report (ACR). Audit documents are normally signed and dated. Index copies of screen printouts that contain data modified and were used in the audit since the last printing of the hard copy.

Multiemployer plan documents filed under Index 11, Audit Documents (Post-DOPT/Trusteeship) and Multiemployer Plans, are not the same as single-employer plan audit documents. The multiemployer plan documents relate to controlled group issues and documentations, plan assets, and contributing employer information, including tax returns and plan financial statements.

11A. Participant Data Audits

This section includes the following documents:

- *Database Construction Report*: Identifies all the participants of the plan, usually by group (for example, Retirees, Beneficiaries, Separated Vested, Active Vested, and Active Non-Vested) and does not include additional information, valuations, or determinations. The auditor frequently writes this document.
- *Participant Review Summary*: Provides a summary of the supporting documentation and work papers used to complete the data analysis and database construction, plan issues, and participant issues.
- *Small Plan Database Construction and Analysis Report*: A streamlined report used to expedite the processing of small plans with emphasis on the validation of the constructed data. The supporting deliverables are included as attachments.
- Memoranda concerning the site visit, including the *Trip Planning Memo* and the *Post-Trip Memo*.

11A1. Final Participant Data Audit

Use 11A after 09/21/2018.

11A2. Early BDL Participant Data Audit

The Early BDL Review Report support early BDLs.

11A3. Plan-Wide Determinations

Documents that support determinations and other decisions that affect all or significant classes of participants in a plan:

- ***Working Retirement Memo***: A memo created by the plan auditor or the Office of Chief Counsel (OCC) that established the conditions under which participants may continue to work while receiving benefits from the plan.
- ***Shutdown Determination***: A memo that documents any benefits payable due to a facility shutdown.
- ***Plan-wide inability to apply determination***: A memo that documents the determination that some participants are eligible for retroactive annuity starting dates because they were unable to apply for benefits for some time before plan termination, often because the plan was abandoned.
- ***Other plan-wide determinations***: Documentation for any unique plan-wide issues that affect eligibility for benefits.

11A4. Final Database

This is the final participant database that has been approved by both CSD management and the Management Coordination Division (MCD).

Note: The *OBA Operations Manual* may state not to image a specific document, but if the document is included in an imaging package for the DMC to image, image the document.

11A5. PDR Administrative Subpoena and Supporting Documents

An administrative subpoena is an official order compelling an individual to provide a government agency with certain information. OBA typically issues subpoenas when plan-related documents that have been requested within an expected timeframe (for example, 30 days) have not been received. This is a legal document that is used to obtain participant records needed to complete the Participant Data Audit/Participant Data Review (PDR).

11B. Plan Document Audit

The *Plan Document List* states what plan documents and amendments the auditors were able to obtain. Sometimes not all amendments or documents are available to the auditors.

11C. Source Document Audit

11C1. Data Element Listing

The *Data Elements and Sources List* document provides a listing of data fields identified by the plan actuary used to construct the participant database, for example, date of birth (DOB) or date of hire (DOH). In addition, this document identifies the best source available to obtain information regarding each variable used to calculate the benefit. For example, the best source for finding years of credited service might be work history cards, the best source of finding salary amounts might be participants' W2 forms.

11D. Plan Asset Audit

Use index barcode 11D, Plan Asset Audit, for documents that cannot be placed in an 11D subcategory (11D1, 11D2, 11D3, or 11D4).

11D1. Final Plan Asset Audit

The *Plan Asset Evaluation Report* identifies and values the pension plan's assets (for example, municipal bonds or airport gates).

11D1. 1108

The *Form 1108 Plan Asset Reconciliation* reconciles the plan's assets values as of DOPT with Financial Operations Division (FOD)/General Accounting Branch (GAB).

11D3. DUEC

Index Due and Unpaid Employee Contributions (DUEC) in this category based on established DOPT:

- Not established: Retain all DUECs in the plan.

- Established: Retain only the most recent DUEC.

11D4. Recovery Valuation

Sum of all funds received for DUEC, premiums, and employer liability from the plan sponsor/controlled group.

11D5. Risk Assessment

The *Risk Assessment for Fiduciary Breach and/or Conflict of Interest for Plan Asset Audit* (also known as *Risk Assessment*) is a tool designed for auditors to determine if there are any potential conflicts of interest, fiduciary breaches, or instances of fraud that would require a more detailed analysis of the plan's assets. The assessment is used to initially review information collected early in the plan asset audit process. Auditors may not be able to fully answer all the questions; however, fraud indicators, fiduciary breaches, or conflicts of interest may be identified and appropriate action taken. Although it is not a requirement, it may be helpful to attempt to fill out the assessment prior to performing any field work. By doing so, areas of concern may be uncovered and planned for accordingly.

11D6. Asset Statements

This section contains the original asset statements used to perform the initial analysis of assets and to determine the value of the plan's assets and liabilities as of DOPT. Examples include balance sheets and transaction statements obtained from the prior plan administrator, financial institution, or insurance company that held the plan's assets.

11D7. Plan Loans

This section contains information documenting plan loans at DOPT. Examples include original plan loan documentation, such as loan agreement, repayment schedules, correspondence, *Affidavit for Plan Loan*, *Plan Loan or Other Distribution Determination Memo*, and calculations supporting the value of the unpaid loan balance at DOPT.

Note: During the “backfile conversion” these documents were placed under 11D and scanned in as individual documents. A document previously scanned in category 11D, Plan Asset Audit, can be reindexed by another subcategory using the *IPS Plan Query—Reindex Request Form*, reproduced in the *IPS User's Guide*.

11D8. PAE Administrative Subpoena and Supporting Documents

An administrative subpoena is an official order compelling an individual to provide a government agency with certain information. OBA typically issues subpoenas when plan-related documents that have been requested within an expected timeframe (for example, 30 days) have not been received. This is a legal document that is used to obtain plan asset records needed to complete the Plan Asset Evaluation (PAE).

11E. Net Worth of Single and Multiemployer Plans

These reports identify the net worth available to cover the pension plan liability. Use index barcode 11E, Net Worth of Single and Multiemployer Plans, for documents that cannot be placed in a subcategory (11E1, 11E2, 11E3, 11E4 or 11E5). Certain multiemployer plan information is included in subcategories (11E1, 11E2, 11E5 and 11E7).

11E1. Financial Analysis Documentation

11E2. IRS Documents (Tax Returns)

These tax returns *are not* copies of tax returns obtained from the IRS, which are safeguarded and never copied or indexed.

11E3. Bankruptcy Information

11E4. Final Net Worth Audit

11E5. Multi- Contributing Employer Data (List of Contributing Employers, Tax Returns, etc.)

These documents include lists of contributing employers, tax returns for contributing employers, etc. Also include copies of all information, relating to contributing employers, obtained as a result of online services. Online services are often used to locate contributing employers, to determine if an employer still exists, its legal status, and the names of its owners.

Similar searches may be conducted when doing controlled group analyses and determinations for specific contributing employers. Index results of controlled group related searches in Section 11F4, Multi-Online Service Documentation (D&B, Autotrak).

11E6. Multi- Plan Asset Statements

These documents show the value of a plan's assets at a specific date and can include statements from banks, investment companies, insurance companies, or any other institution holding the assets of the plan.

11E7. Multi- Plan Financial Statements

These documents include any financial statements for the Plan, usually covering a specific plan year, and are usually prepared by the plan's internal accountant, a public accountant, a CPA firm, or an insurance company and may be either audited or unaudited.

Note: During the "backfile conversion" these documents were placed under 11E and scanned in this order:

1. Financial analysis documentation on top.
2. Prior plan administrator tax returns next.
3. Bankruptcy information placed last.

11F. Controlled Group and Supporting Documentation and Multiemployer Plans

This report examines the major stockholders' financial picture to see if there are other related companies that could fund some of the pension plan liability.

11F1. Final Controlled Group Audit

11F2. Multi-Summary of Findings & Determinations

These documents include any summary of findings and controlled group determination prepared for a contributing employer by the MEPD. The documentation is usually in the form of a memorandum, also prepared by MEPD.

11F3. Multi-Analysis

These documents are prepared by PBGC (usually MEPD) to complete a summary of findings and controlled group determination memo.

11F4. Multi-Online Service Documentation (D&B, Autotrak)

These documents include any information obtained via searches of online services, including Dun & Bradstreet and Autotrak, which are used to determine if a specific contributing employer is part of a controlled group.

11F5. Multi-Tax Returns

These documents are copies of tax returns of contributing employers, related companies and their owners. These tax returns are *not* copies of tax returns obtained from IRS, which are safeguarded and never copied or indexed.

11F6. Multi-Miscellaneous Documents

These documents are obtained from sources other than online services and copies of tax returns. These documents may be copies of stockholder lists, letters of explanation, or other documentation that proves or disproves the existence of a controlled group.

11G. Participant Data Validation (PDV)

11G1. Final Participant Data Validation

Use 11A. Participant Data Audit after 09/21/2018.

11G2. Plan-wide Determinations

Use 11A3. Plan-wide Determinations after 09/21/2018.

11G3. Final Database

Use 11A4. Final Database after 09/21/2018.

11H. Plan Closing Audit Report (includes checklist)

This report could include the *Plan Completion Memo*, *Plan Completion Checklist*, and database.

11I. ADT Audit Completed/IPV Missing Date Report

ADT refers to Automated Data Transfers, which download information to the paying agents' computers. IPV means Individual Present Values. This document is probably a statement, letter, or memorandum stating that the ADT has taken place.

INDEX 12: Actuarial Case (Closeout) Reports (Post-DOPT/Trusteeship)

Note: See Section 10 for Pre-DOPT/Trusteeship data.

The Actuarial Case Report (also known as the ACR) is assigned to an actuary to complete. This is the final report from the actuary valuing the entire plan.

The ACR contains the following items in this order:

- Actuarial Case Report Checklist
- Actuarial Case Memo

- CMS Asset Screens
- Plan Summary
- Plan Factors
- Sample Benefit Statements
- Sample Retirement Statements
- Valuation Listings

If additional data is discovered that would fit into any of the subcategories of Index 12, Actuarial Case (Closeout) Reports (Post-DOPT/Trusteeship), it is *not* filed in Index 12, but in section 8A, PBGC Internal Gross Level Participant Data and Non-ASD Spreadsheets (Post-DOPT/Trusteeship).

12A. Actuarial Case Report Checklist

The *Actuarial Case Report Checklist* is used during case review and serves as the table of contents for the entire ACR.

12B. Actuarial Case Memo (Includes PA Guidance)

The *Actuarial Case Memo* provides an explanation of the case and information for the EBLS for any special circumstances on some participants' benefits.

Note: Pension Analyst (PA) is a former title for the Employee Benefits Law Specialists (EBLS).

12C. ARIEL Valuation Memo and Calculation Details

ARIEL reports that contain output data from the valuation. Reindex current section 12C, ARIEL Valuation Memo and Calculation Details, documents to section 12B, Actuarial Case Memo (Includes PA Guidance).

12D. Plan Abstract/Plan Summary/APAD

The plan abstract tells where you can find certain plan information within the plan and its amendments.

12D1. Plan Summary

A reference guide for the documents that are used to determine benefits in the plan.

12D2. ARIEL Plan Analysis Document (APAD)

A programming guide for calculating benefits using the ARIEL system.

12E. Plan Conversion Factor

Documents that do not fit the subcategories 12E1, 12E2, and 12E3, may be indexed in to 12E, Plan Conversion Factor.

12E1. Benefit Form Conversion

Includes Joint and Survivor (J&S) information.

12E2. Early Retirement

12E3. Late Retirement

Plan Conversion Factors that apply to participants benefits when they retire late.

Note: During the “backfile conversion” these documents were placed under 12E, Plan Conversion Factor, and scanned in the following order:

1. Benefit Form Conversion on top.
2. Early Retirement next.
3. Late Retirement.

12F. Valuation Spreadsheets/Listings

These may include worksheets for phase-in calculations, and average compensation. Documents with stick-on labels attached should be retained in preference to any others.

Note: During the “backfile conversion” these documents were placed under 12F, Valuation Spreadsheet/Listings, and scanned in this order as separate documents:

1. Active Vested Participants
2. Separated Vested Participants
3. Retirees
4. Beneficiaries
5. Disabled Participants
6. Substantial Owners

12G. Quality Control Review

This document is an optional ARIEL report that outlines errors found in the ARIEL calculations and how to fix those errors.

12H. Benefit Statement Recalculation Program Instructions

12I. Samples of ARIEL Benefit and Retirement Statements

Samples of benefit statements and recalculations including historical benefit calculations and early retirement calculations.

12J. Samples of Detailed Calculations

Examples of the detailed benefit calculations that are produced in the ARIEL system, including historical plan information sheet.

12K. Contractor’s Actuarial Certification

If a contractor created the Actuarial Case Report (ACR), they provide an Actuarial Contractor Certification.

12L. Unassigned

12M. Actuarial Task Orders

12N. Purchased Annuity Listings

12O. Lump Sums Paid Prior to DOPT

12P. Miscellaneous

12Q. 4022(c) Revisions

Section 4022(c) of ERISA requires that, in addition to their Title IV benefits, plan participants share in PBGC's recoveries from plan sponsors. Normally the 4022(c) benefits are calculated at the same time as the valuation of liabilities/allocation of assets. In these cases, all information should be in the Actuarial Case Memo and this section remains blank.

In certain cases, however, the Title IV liabilities can be computed, but the 4022(c) benefits cannot be computed at that time (that is, the applicable SPARR is not yet available). When the SPARR becomes available (1) the additional liabilities should be computed, (2) the case memo should be revised, and (3) supplemental information, as applicable, should be included behind this tab. This supplemental information should include, as applicable, a list of the participants entitled to 4022(c) benefits, guidance as to benefit recalculation to include 4022(c) benefits, and information about the status of the BSRS program.

12R. Cash Balance Plan Annual Updates

Documents associated with cash balance plan updates include, but are not limited to:

- Cash Balance Update Memo
- Cash Balance Update Instructions
- Cash Balance Tracking Sheet
- Sample Cash Balance Benefit Update Statements
- Table of Historical Rates

- Cash Balance Update Listing
- Updated Benefit Form Conversion Factors
- Miscellaneous

12S. CAS Asset Screen (historical reference only)

This document type is for storing the historical documents that were indexed under 12G, Quality Control Review, which use to contain the CAS Asset screens for the valuations that are being done in the ACT software.

INDEX13: SID Documents (Post-DOPT/Trusteeship)

These are Settlement Implementation Division (SID) (or in older plans, the SI Group) documents. The appearance of this category of documents is unlikely in the plan file documents. However, during the backfile conversion of plan files to images, these documents, from the SID File Room, were scanned and have been integrated into the overall plan files. This information is included for future reference.

Note: Do not use this section to image documents unrelated to the RETTIG settlement.

13A. Correspondence

13B. Participant Data Audit

13C. Technical Review

13D. RETTIG Actuarial (Closeout) Report

INDEX14: Standard Termination

The STCD acknowledges compliant filings and works with filers to perfect incomplete or non-compliant filings.

14A. STCD Forms and Schedules

14A1. Standard Termination Notice (Form 500)

1. Write the eight-digit CMS Number clearly on the top line of the **STCD Index Routing Slip** This should be the first page under category 14A1.
2. The second document(s) under category 14A1 should be the *500 Worksheet*.
3. The third item under category 14A1 should be the *Form 500 Standard Termination Notice Single-Employer Plan Termination*.
4. The fourth and final item under category 14A1 should be the envelope or facsimile cover page for the *Form 500 Standard Termination Notice Single-Employer Plan Termination*.

14A2. Certification of Sufficiency (Schedule EA-S)

Include PBGC Schedule EA-S and any corresponding envelope that includes a time-sensitive postmark. Place the envelope behind the form.

14A3. Designation of Representative (Schedule REP-S)

If a substitute for the REP-S form, such as a power-of-attorney, is provided by the applicant, include in this section.

14A4. Post-Distribution Certification (PDC) (Form 501)

Include Form 501 Post-Distribution Certification for Standard Termination, and any corresponding envelope that includes a time-sensitive postmark. Place the envelope behind the form.

14B. STCD Correspondence

Plan-level correspondence sent and received by STCD. For example, Acknowledgment Letter(s), Non-compliant Letter(s), Incomplete Letter(s), Perfection Letter, Reminder Letter(s), Status Letter, Premature Distribution Letters, Late Distribution Letters, General Incoming (from the filler), and General Outgoing (Null and Void, etc.).

Cover Letters pertaining to forms should be included in this section.

Keep fax cover sheets and envelopes with the applicable correspondence or form as the last page following the correspondence or form.

14C. Distribution Data

Participant data information is examined to determine whether proper benefit amounts were calculated. Data is usually in the format of schedules or worksheets.

INDEX15: Coverage/Classification Cases

This category contains documents that the EBLS of PBGC use to determine the coverage status of plans under the termination insurance provisions of Title IV of ERISA. Based on information provided by the sponsor, the EBLS determines if the plan is covered or excluded under Title IV and sends notification to the plan sponsor.

15A. Correspondence Requesting Coverage/Classification

15B. Phone Log(s)

15C. Determination Letters

INDEX16: Multiemployer Cases

Multiemployer cases can be divided into two broad categories: 1) cases that do not require PBGC financial assistance, and 2, cases for which PBGC provides financial assistance. These are roughly analogous to the single-employer division between reportable events and trustee plans. With the passage of time, a multiemployer plan can cross categories, for example by starting as one type (mass-withdrawal termination) and becoming another (requiring financial assistance).

16A. Event Filing Documents and Related Correspondence

These documents are the original documents sent to PBGC to notify it of events related to multiemployer plans, which are required to be reported to PBGC per Title IV of ERISA. These events are similar to the reportable events single-employer plans are required to report to PBGC. As there are no PBGC prescribed forms for filing a multiemployer event, the original documents, as outlined in ERISA Regulations, submitted by the plan can be in the form of a letter or other type document, including e-mails.

When an Initial Request for Financial Assistance is received, among the documents to be included here is the *Initial Request for Financial Assistance* and attachments. Also include the *Initial Reconciliation Work Sheet* prepared by the CAB/STCD auditor assigned to the case, when reviewing the plan's financial condition.

16A1. At Risk Filing Notices and Attachments

These documents include two types of At Risk Notices required to be filed with PBGC, by multiemployer plans, starting in 2008. At Risk Notices are categorized as either Critical Notices (less than 65% funded) for plans in the Red Zone or Endangered Notices (less than 80% funded) for plans in the Yellow Zone. Various documents may be attached to the Notices, including copies of Reorganization Plans, Rehabilitation Plans, or Funding Improvement Plans. The first year the Notice is filed it is called an Initial Filing. Notices filed in subsequent years are called Annual Filings.

Copies of Notices to Participants may also be attached. These Notices to Participants should be filed here because they represent proof that the required notices were sent to participants. In all likelihood, the attached notice will be a template of what was sent out.

16B. Official Incoming/Outgoing Correspondence, E-mails and Phone Logs

These documents include official correspondence between plan representatives and PBGC. They may be original letters, copies of official correspondence sent to PBGC, e-mails, and documentation (including PBGC phone logs) of relevant phone calls.

16C. ASD Valuations and Analyses

These documents include plan valuations, and related memos, as well as limited analyses prepared by ASD. Include any other plan valuations prepared by PBGC organizations.

16D. IRS Determination Letters

These documents include copies of IRS Determination Letters received from all sources, including the IRS.

16E. DOL/IRS Documents

These documents include copies of plan documents received from DOL and/or IRS, and not indexed elsewhere.

16F. Federal Register Notices

These documents are prepared for Federal Register Notices.

16F1. Federal Register Notices and Authorizations

These documents include all Federal Register Notices published by PBGC in the Federal Register, including both Initial Federal Register Notices and Final Federal Register Notices, along with the related supporting documents and approval memos.

16F2. Public Comments

These documents include all comments received, by PBGC from the public, in response to the publication of a Federal Register Notice.

16G. Withdrawal Liability Documents

These documents include any and all documentation relating to the withdrawal liabilities attributable to contributing employers of the plan. Such documents may include documentation of the Board of Trustees' or plan administrator's efforts to obtain withdrawal liabilities, such as letters, court actions, and lawsuits. Also, include any worksheets or other documents showing how a contributing employer's withdrawal liability was calculated.

16H. Contributing Employer(s) Information

These documents include all information relating to employers who are currently contributing to the plan or have previously contributed to the plan. Often this includes a formal List of Contributing Employers. Ideally, the list should include their names, addresses, EINs, and phone numbers.

16I. Case Closing Documents

There are several types of case closings for multiemployer plans, which should be included in this section. These types of closings include Sufficient Plan Case Closing, Cases Closed after the appropriate action has been taken by MEPD, and Administrative Closings:

- Sufficient Plan Case Closing (aka Plan Close Out): Documents created by PBGC to document the close out of the plan should include a close out memo and any letter(s) sent to the plan acknowledging the close out of the Plan. The close out documentation submitted by the Plan to PBGC, in support of the plan's claim that the plan has been closed out, was sufficient when terminated and/or closed out and all distributions to participants made should be indexed in Section 4C, Multi-Distribution Certification and Attachments.

- Closed Cases: Required PBGC to review, evaluate, and /or approve of the actions taken by the plan, which could include the publishing of federal register notices (indexed in Section 16F, Federal Register Notices.) by PBGC. It may also include cases in which the plan has asked for concurrence or guidance from PBGC. Include any and all memos and other documents prepared in connection with the closing of the case.
- Administrative Closings: Relate to various situations, such as duplicate numbers being issued for cases already open, cases where information requested by PBGC (within a specified time period) has not been received by PBGC, resulting in PBGC not taking any action, cases where PBGC has decided no action is needed or a plan withdraws their request for action and/or approval. Other situations may also exist. Include any and all memos and documents prepared in connection with the administrative closing of the case.

16J. Financial Assistance Cases

16J1. Periodic Requests and Supporting Invoices

The plan's trustee or plan administrator submits requests for financial assistance monthly, quarterly, semi-annually or annually. The request should have attached to it all the documents required to support the amount being requested. All documents that make up a request for financial assistance, except the initial request, should be included here.

Financial assistance covers funding for benefit payments to retirees in the plan and other plan expenses such as administrative expenses, which normally include trustee fees, plan administrator fees, legal fees, accountant fees, actuarial fees, and other fees as warranted. Special attention should be paid to the nature and dollar amount of administrative expenses. Include all supporting documents in this section.

Whenever a *Financial Assistance Request* is submitted to PBGC, which occurs after the Initial Financial Assistance Request is processed by PBGC; the CAB/STCD auditor assigned to the case prepares a *Monthly/Quarterly Reconciliation Worksheet* detailing the plan's cash on hand, income and expenses, for the period of financial assistance requested. Each time a periodic request for financial assistance is received, the *Monthly/Quarterly Reconciliation Worksheet* is updated by the CAB/STCD auditor. Each time the *Monthly/Quarterly Reconciliation Worksheet* is updated, it should be indexed in this section, along with the applicable financial assistance request and related attachments, that is, invoices. Special effort should be made to ensure that all documents related to administrative expenses are included.

It should be noted that the *Monthly/Quarterly Reconciliation Worksheet* generally should cover no more than a year's worth of information. The year start date is the month the Initial Request for Financial Assistance was received and each year thereafter, that is, the yearly period for a plan that filed its *Initial Request for Financial Assistance* in November 2006 is November 2006 through October 2007.

16J2. Security Agreements

Whenever PBGC provides financial assistance to a plan, the financial assistance given is considered to be a loan to the plan and must be secured by a Security Agreement signed by the plan's trustee(s), plan administrator or other individuals given the legal authority to do so. The signed Security Agreement creates a lien on the assets of the plan, enforceable in court.

16J3. Promissory Notes

Whenever a plan receives financial assistance from PBGC, Promissory Notes, enforceable in court, are signed by the plan's trustee or plan administrator or other individuals given the legal authority to do so. As financial assistance to a plan is a loan, it is expected that the plan will repay the loan, when it can afford to do so.

Plans, which started receiving financial assistance prior to August 2005, are required to have a new Promissory Note signed each time a financial assistance payment is made to the plan. For plans that started receiving financial assistance after August 2005, usually only one signed Promissory Note is needed.

16J4. Approval Memos

Whenever a plan is scheduled to receive financial assistance from PBGC, a memo approving the financial assistance request is prepared by the CAB/STCD auditor assigned to the case and signed by the Chief Program Officer of the Insurance Programs Office. The signed approval memo and all supporting documentation should be indexed in this section.

The *Transfer of Funds Authorization Memo* sent to the FOD/GAB from CAB, requesting FOD to provide the funds to the plan should also be indexed in this section.

16J5. Cash Flow Forms

At the end of each fiscal year, ASD requests the CAB/STCD auditor assigned to the case to prepare a cash flow form for the plan. A copy of this cash flow form should be indexed in this section.

16J6. CAB/STCD Financial Assist. Audit/Review Reports

When a plan requests financial assistance from PBGC, CAB/STCD sends an auditor to audit the records of the plan. The auditor then writes up the results of their audit. A copy of this audit report should be indexed in this section. In addition, whenever CAB/STCD conducts an audit or review of the plan, a copy of the audit/review report should be indexed in this section. Audits conducted by organizations outside of CAB/STCD should be indexed in Section 4D, Multi-PBGC/CPA Review/Audit Reports.

16K. MEPD SOP Checklists

MEPD has developed new Standard Operating Procedures for the various Case Types (10 in all) processed by MEPD, such as Termination by Mass Withdrawal and Mergers and Transfers between Multi Plans. Part of the documentation required by each of the ten SOPs is the completion of a checklist for each case processed. This is a lengthy document outlining the steps taken by MEPD to analyze the case. It should always be included in the case file, once MEPD has finished processing the case.

INDEX17: Reconsiderations

Reconsiderations are requested as a result of determinations made previously by EBLS' that identified deficiencies in the filing such as: non-compliance with ERISA, incomplete documentation, or nullification for failure to distribute assets within the required period. This determination may be disputed by the plan sponsor. This category contains documents which the EBLS' of the PBGC use to facilitate a subsequent review.

17A. Request for Reconsideration

17B. Documentation

17C. Determination

INDEX20: Missing Participant Program

Note: These documents may pertain to either Distress or Standard Termination Plans. For multiemployer plans, these documents include inquiries related to possible missing participants. They may be correspondence to and from PBGC, e-mails, phone logs, and the results of online service queries by MEPD or other PBGC personnel.

20A. Post-Distribution Certification (PDC)

20A1. Form 501—Standard Termination Notice

20A2. Form 602—Distress Termination Notice/Amended Post-Distribution Certification (non-trusted plans)

20B. Schedule MP

20B1. Plan Administrator Certification

20B2. Enrolled Actuary Certification

20C. Attachment A

Annuity Purchase Information Sheet.

20D. MP Correspondence (Plan-Level)

All plan-level correspondence for Missing Participants (MP) regardless of subject (that is, Legal, Financial, Actuarial, Appeals Board, Congressional, and Miscellaneous). There are no further (sub or sub-sub) document types assigned.